

Madhya Pradesh Warehousing and Logistics Corporation

Pre-Bid Meeting Queries & Replies

for

Appointment of Transaction Advisor for establishment of Multi-Modal Logistics Parks in M.P. State

RESPONSE TO PRE-BID QUERIES

Based on pre-bid queries submitted through e-mail and as discussed in the video conference, decisions on only the following clauses are being affected, others remain same as mentioned in the RFP document.

S.No.	Section Number	Originally mentioned as in the RFP document	To be now read as
1	2.3 : Bid Data Sheet – EMD / Bid Security Amount	Rs. 5.00 (Five)Lakhs to be paid online through e-procurement portal valid for a minimum period of 210 days.	Rs. 5.00 (Five)Lakhs to be paid online through e-procurement portal valid for a minimum period of 240 days.
2	2.3 : Bid Data Sheet – Performance Bank Guarantee	Amount equivalent to 10% of the total contract amount within 7 days of issue of LOI.	Amount equivalent to 10% of the total contract amount within 15 days of issue of LOI.
3	2.3 : Bid Data Sheet – Bid and EMD Submission	On or before 29-Sep-2020 (Tuesday), 11.00 hrs	On or before 05-Oct-2020 (Monday), 11.00 hrs
4	2.3 : Bid Data Sheet – Date and time for opening of Eligibility Criteria Documents	On 29-Sep-2020 (Tuesday), 14.00 hrs	On 06-Oct-2020 (Tuesday), 11.00 hrs
5	2.3 : Bid Data Sheet – Date and time for opening of Financial Proposal	On 03-Oct-2020 (Saturday),14.00 hrs	On 09-Oct-2020 (Friday),11.00 hrs
6	3.2 : Pre-Qualification Criteria; # 3 – Annual Turnover	Minimum Rs. 20 (Twenty) Crores as an average turnover of preceding 3 years as on 31-March 2020	Minimum Rs. 20 (Twenty) Crores as an average turnover of preceding 3 years as on 31-March 2020 or preceding 3 years as on 31-March 2019 if audited financial statements are not available for FY 2020.
7	5.0 : Deliverables	Please refer Annexure 1 (page 10 of this document)	Please refer Annexure 1 (page 10 of this document)
8	6.1 : Payment Milestones - Stage-IV : Bid Process Management	On completion of signing of contract agreement between MPWLC and Concessionaire: 20%	a. Submission of all requisite and acceptable Bid Documents for each MMLP location – 10% b. On completion of signing of last contract agreement between MPWLC and Concessionaire – 10%
9	6.2 : Penalties	Penalty amounting to 5% of each deliverable will be deducted from each payment milestone for delays attributable to the Transaction Advisor	Penalty amounting to 5% of each deliverable per week of delay will be deducted from each payment milestone for delays attributable to the Transaction Advisor

S.No.	Section Number	Originally mentioned as in the RFP document	To be now read as
10	7.14 - Performance Obligations	We request the authority to clarify if the bidders need to propose a team of key professionals for this assignment.	a. While providing services as per Scope of Work, the Successful Bidder shall ensure that there is no infringement of any patent or design rights or violate any intellectual property or other right of any person or entity and shall comply with all applicable Laws, Statute, regulations and Governmental requirements and he/she shall be solely and fully responsible for consequence / any actions due to any such infringement. b. Successful Bidder should have at-least two resources, one of them being a senior resource stationed in Bhopal during contract period for coordination with MPWLC.
11	7.4 : Performance Bank Guarantee	a. The Bidder shall be required to submit PBG as specified in Bid Data Sheet within 7 days of issue of LOI in the format detailed in Section 8.7	a. The Bidder shall be required to submit PBG as specified in Bid Data Sheet within 15 days of issue of LOI in the format detailed in Section 8.7
12	7.4 : Performance Bank Guarantee	c. The PBG shall be remaining valid six months beyond the life of the contract.	c. The PBG shall be remaining valid three months beyond the life of the contract.
13	7.6 : Termination of Bidder	i. Before taking final decision on the matter, all concerned will be given reasonable opportunities to explain their stand. After enquiry, if the Bidder is found guilty, the engagement of the concerned Bidder for the services in question can be cancelled and other appropriate legal action shall also be initiated against all concerned. In case of any dispute, the decision of the Managing Director, MPWLC shall be final and binding.	i. Before taking final decision on the matter, all concerned will be given reasonable opportunities to explain their stand. After enquiry, if the Bidder is found guilty, the engagement of the concerned Bidder for the services in question can be terminated and other appropriate legal action shall also be initiated against all concerned. In case of any dispute, the decision of the Managing Director, MPWLC shall be final and binding.

S.No.	Section Number	Originally mentioned as in the RFP document	To be now read as
14	8.2 : Format of Project Details	Bidder to provide project details as required in # 7 & 8 of Clause 3.2.1, Eligibility Criteria in the below given formats	Bidder to provide project details, along-with copies of Client Certificate / Contract Agreement / Work Order in support of each project, as required in # 7 & 8 of Clause 3.2.1(Eligibility Criteria) in the below given formats: (Projects shall be considered for evaluation where the Bidder has completed their scope of work irrespective of project implementation status)
15	Additional Clause	We also request to provide limitation of liability clause	7.17: Limitation of Liability The maximum aggregate liability of Successful Bidder shall not exceed the total contract value for the entire contract period.

CLARIFICATIONS SOUGHT BY BIDDERS

S.No.	Clause Number	Clarification Sought	Clarification being provided
1	1.0 - Executive Summary State intends to set up Multi Modal Logistics Parks across various strategic locations on a PPP mode	We request you to kindly clarify if the authority has already prepared a list of potential locations for these Multi Modal Logistics Parks and if consultant needs to evaluate these locations only.	Bidders to refer point number 7 of Section 4.1 (Feasibility Study)
2	3.2 : Pre-Qualification Criteria - #2 Joint Ventures	As per the RFP document, Joint Ventures are not allowed to participate in this Bid. We request the client to kindly clarify whether any technical survey related works shall be involved in the scope of this assignment. If yes, then there will be a need to involve technical consultants for the same and hence, the requirement of JV shall arise. Request clarification on the same.	Joint Ventures are not allowed to participate in this Bid.
3	5.0 – Deliverables	Kindly provide an estimate for the number of days required for the corresponding policy formulation.	It is estimated that policy formulation and approval shall be completed in 90 days.
4	8.5.2 - Financial Proposal	We request the authority to kindly clarify if SN 1 & 2 have to be filled by the bidder in the financial form.	Not Required as this is just a template of proposal that needs to be filled in the online portal.

S.No.	Clause Number	Clarification Sought	Clarification being provided
5	1.1 : Feasibility Study	Our understanding is that scope of consultant shall involve only conceptual planning for MMLPs — kindly confirm. It may also be noted that typically detailed engineering is undertaken by the Developer/PPP Concessionaire	Bidders to refer point number 10 of Section 4.1 (Feasibility Study). High level development components is synonymous to Conceptual Planning
6	4.1 : Feasibility Study	It is not clear from the feasibility study scope whether the transaction advisor will have to take up activities such as land due-diligence, land acquisition, environmental study and socio-economic impact analysis. Kindly confirm. Also, it is not clear whether any surveys will be required under location analysis. Please clarify.	Except for land acquisition, rest all queried for comes under Bidder's scope of work.
7	1.2 : Techno-Economic Study	We request to limit the maximum number of locations to be studied in this stage to a definite number, say maximum of three locations to be taken up for Stage II. These could be best 3 locations coming out of stage I feasibility study, decided basis discussion with the Authority. Without giving the definite number of location, it will be difficult to gauge the effort and costing for the bidder.	It is for the Bidder, based on the feasibility study to suggest and justify maximum number of locations
8	1.3 : Techno-Economic Study	It is requested to please add an additional point in the scope to emphasize on feasibility of rail connectivity and alternative alignment options to the proposed location of MMLP {refer Annexure I).	Please refer point 1 and 3 of section 4.1 (Feasibility Study).
9	1.4 : Policy Formulation	Currently the nature and extent of support required for policy formulation is not clear. We request you to clarify the nature of support required.	Drafting Policy document is not in Bidder's scope. Bidder maybe required to assist MPWLC in providing documentary support that shall serve as reference points / basis for Policy Formulation.
10	1.5 : Bid Process Management	The RFP requirement states that the Consultants would be required to undertake Bid Process management for each MMLP post approval of Policy Document on MMLP. The department is requested to indicate the number of such transactions that the Consultant would have to undertake.	Number of MMLP locations will depend on Bidder's feasibility study and techno-economic report. Please refer section 4.3 (Final Report)

S.No.	Clause Number	Clarification Sought	Clarification being provided
11	5.0 : Deliverable schedule	In the timeline given for deliverables, there is a gap in each stage for requisite approval. Next stage can only be commenced if the earlier stage deliverable is approved. Therefore, it is necessary to provide a definite timeline for the approval of each stage so that overall assignment can be planned in specified 21 months contract period. We suggest the Authority to define 30 days limit for granting approval for each stage final deliverable, so that next stage can be planned accordingly. The relevant payment amount linked with such approval shall be deemed payable after 30 days irrespective of further delay.	A lag period has been provided between submission of acceptable draft and final reports to as to make immediate approval of final reports. However this approval depends upon the quality of report being provided by the successful bidder, their ability to justify reports being submitted and answer all queries raised by MPWLC.
12	Team Composition Clause	consider the team composition, qualification and experience	MPWLC does not intend to limit Bidders to use specific team compositions. MPWLC expects Bidders to engage well qualified in-house professional team / short term out-sourced subject matter experts to provide an implementable solution
13	Successful Bidder's Team / Resources Seating	Clarification is requested from the authority if the team / resources would have to be based from client's office or can work from own office?	Successful Bidder has freedom to work from their office. However, Successful Bidder should have at-least two resources, one of them being a senior resource stationed in Bhopal during contract period for coordination with MPWLC.
14	Project Budget Provision	We request department to provide the budget provisioned for implementation of the Multi Modal Logistics Project by the MP State Government to for better understanding of the Project objectives.	Please refer Section 1 : Executive Summary. The establishment of MMLPs is on PPP mode.

ANNEXURE 1

5.0 Deliverables:

The Transaction Advisor will provide deliverables against each Project Stage as given below:

Stage	Deliverables	Time frame as per RFP	Revised Time frame
Project Initiation	- Approach & Methodology to complete the Scope of Work - Support required from the MPWLC	3 days from the date of issue of LOI	3 days from the date of issue of LOI
Stage-I Feasibility Study	Submit acceptable draft feasibility report	45 days from the date of Issue of LOI	75 days from the date of Issue of LOI
	Submit acceptable final feasibility report	60 days from the date of Issue of LOI	100 days from the date of Issue of LOI
Stage-II Techno-Economic Study	Submit acceptable draft techno-economic study report	60 days from the date of approval of feasibility report	75 days from the date of approval of feasibility report
	Submit acceptable final techno-economic study report	80 days from the date of approval of feasibility report	100 days from the date of approval of feasibility report
Stage-III Final Study	Submit acceptable final study report	15 days from the date of approval of techno-economic report	15 days from the date of approval of techno-economic report
Stage-IV Bid Process Management	Prepare acceptable final bid documents	75 days from the date of approval of policy document	75 days from the date of approval of policy document
	Completion of contract agreement with concessionaire	180 days from date of approval of policy document	180 days from date of approval of policy document

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